



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Sophia Maes

Subject: PUDC-23-171 | 5419 Ridge Road – Annexation

Date: January 8, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 01/08/2024
- Public Services Committee 01/17/2024
- Second reading 01/22/2024
- Public Services Committee 02/06/2024
- Third and final reading 02/12/2024

Related Items to be introduced on 01/08/2024:

- PUDC-23-171: Assigned Zoning

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHEAST OF THE INTERSECTION OF DOUGLAS STREET AND RIDGE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Chase Peterson et ux., owner of: Tract 6, Dell Range Addition, Laramie County, Wyoming has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned AR Agricultural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ANNEXATION DESCRIPTION

TRACT 6, DELL RANGE ADDITION.

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,,
this _____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk

ANNEXATION AREA

TOTAL AREA: 9.39 ACRES
9.39 ACRES PARCEL

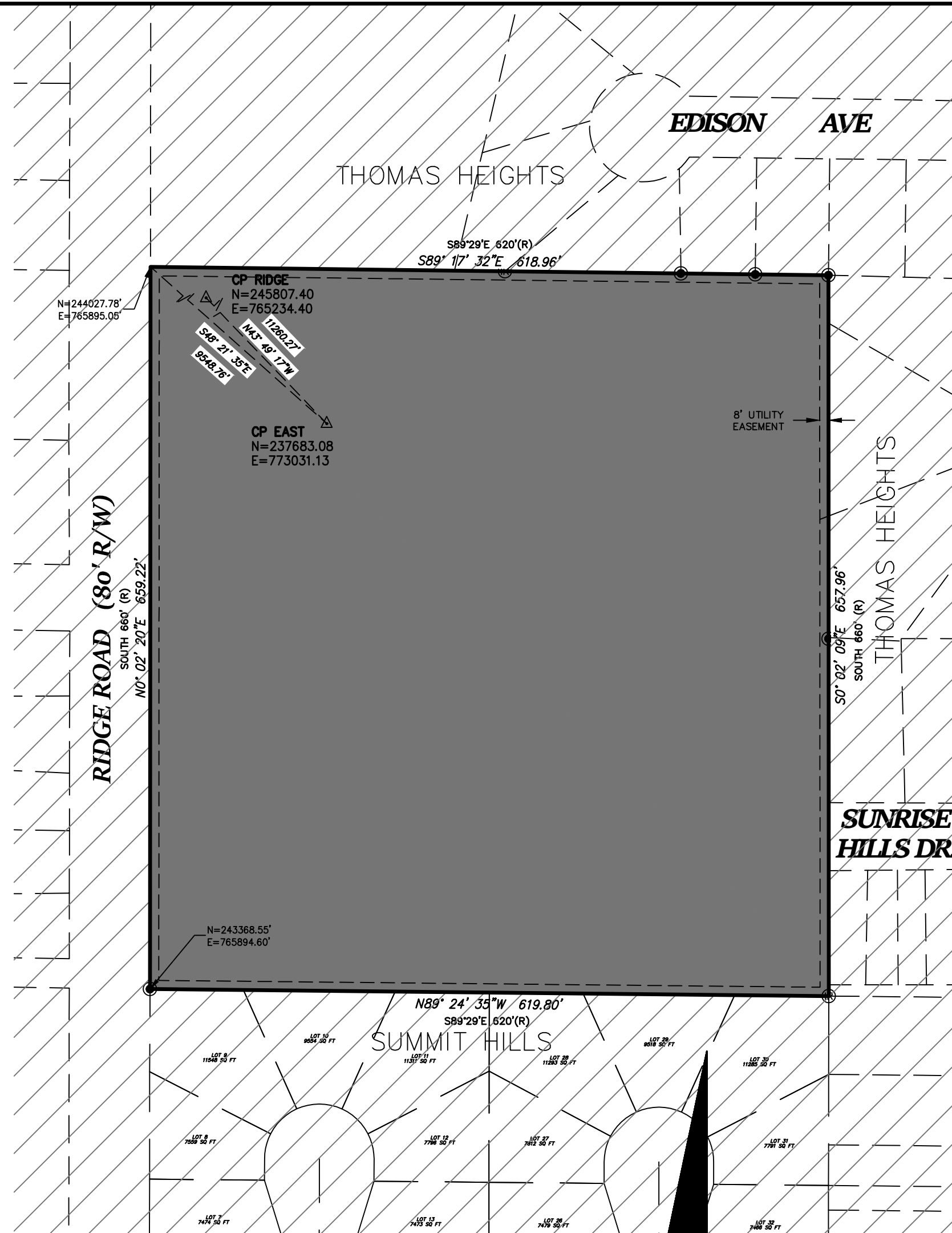
ABUTTING ANNEXATION AND RATIO TO TOTAL
PERIMETER - 100%

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

FILING RECORD



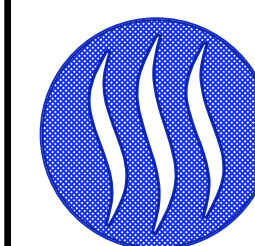
LEGEND

- SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP
- (R) DENOTES RECORD DATA
- AREA TO BE ANNEXED
- ▨ CITY LIMITS



**ANNEXATION
EXHIBIT**

OF
TRACT 6, DELL RANGE ADDITION
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED OCTOBER 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 ○ (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 ○ (307) 322-9789
www.SteilSurvey.com ○ info@SteilSurvey.com

100 0 100 200 300
Scale: 1" = 100'
REVISED: 12/14/2023
23315 ANNEX.DWG



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

JANUARY 8, 2023

STAFF REPORT

FILE: PUDC-23-171: Tract 6, Dell Range Addition - Annexation

REQUEST: An annexation of 9.39 acres of land.

LOCATION: Northeast of the intersection of Douglas Street and Ridge Road

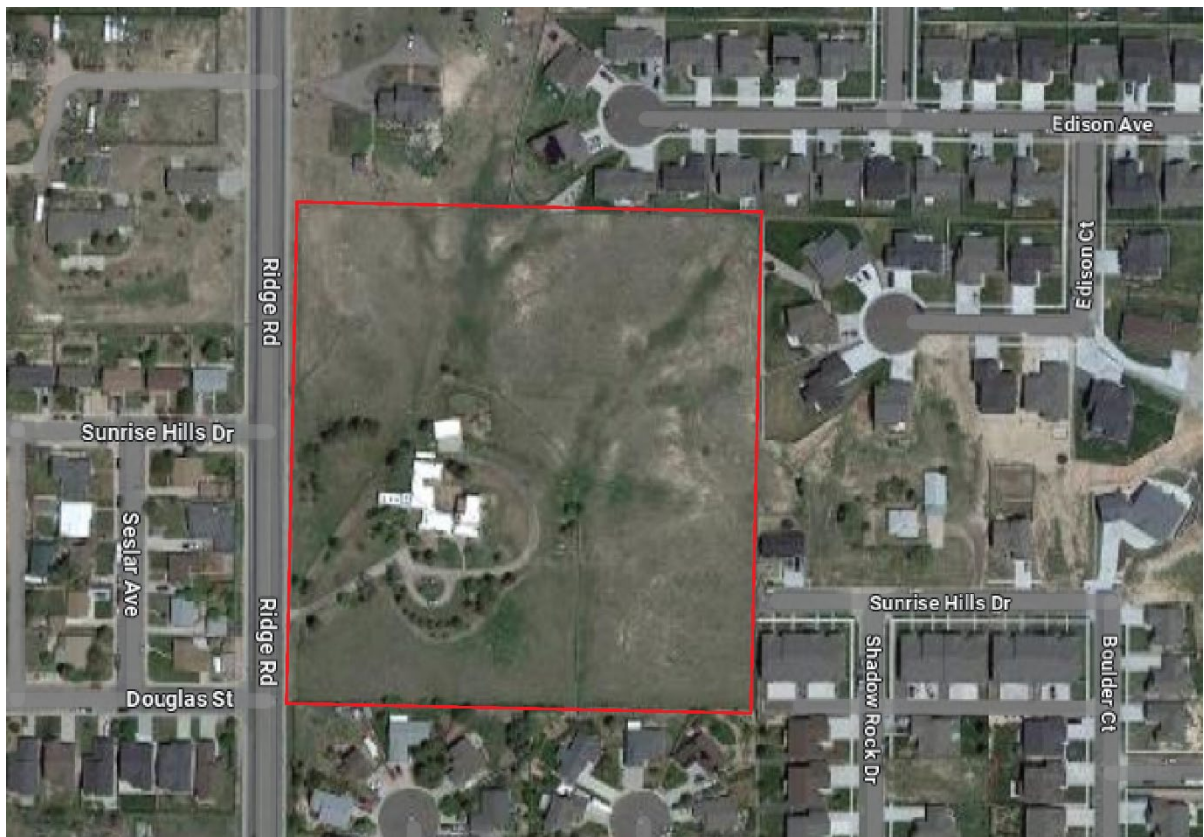
APPLICANT: Shane Hansen

AGENT: Steil Surveying Services, LLC — Shane Hansen

OWNERS: Chase Peterson et ux

PURPOSE: Owner request

PREPARED BY: Sophia Maes, Planner I



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant requests the annexation of 9.39 acres of land. The land is currently occupied by a single-family dwelling unit and an accessory dwelling unit. The annexed area will be assigned a City zone based on the underlying County zone.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by an assigned City zone of AR.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	UR Urban Residential	AR Agricultural Residential	Residential
North	UTR Urban Transition Residential	AR Agricultural Residential (NW portion); MR Medium Density Residential	Residential
South	UR Urban Residential	MR Medium Density Residential	Residential
East	UR Urban Residential	HR High Density Residential (SE portion); MR Medium Density Residential	Residential
West	UR Urban Residential	MR Medium Density Residential	Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being within City limits, the property will receive access to City Fire and Police and sanitation services.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economic, and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property will constitute a natural, geographic, economic, and social part of the city. The property is a County pocket, surrounded by City parcels. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utility infrastructure exists adjacent to the property in Ridge Road.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 100% contiguous.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on December 5th, 2023. The public hearing for this annexation is scheduled for January 8th, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is December 5th, 2023. The earliest confirmation of delivery was dated December 7th, 2023.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop as urban residential. These areas can develop with or without access to urban services. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

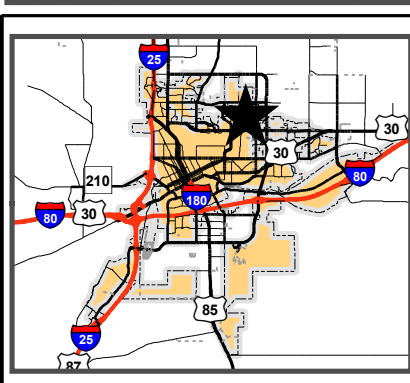
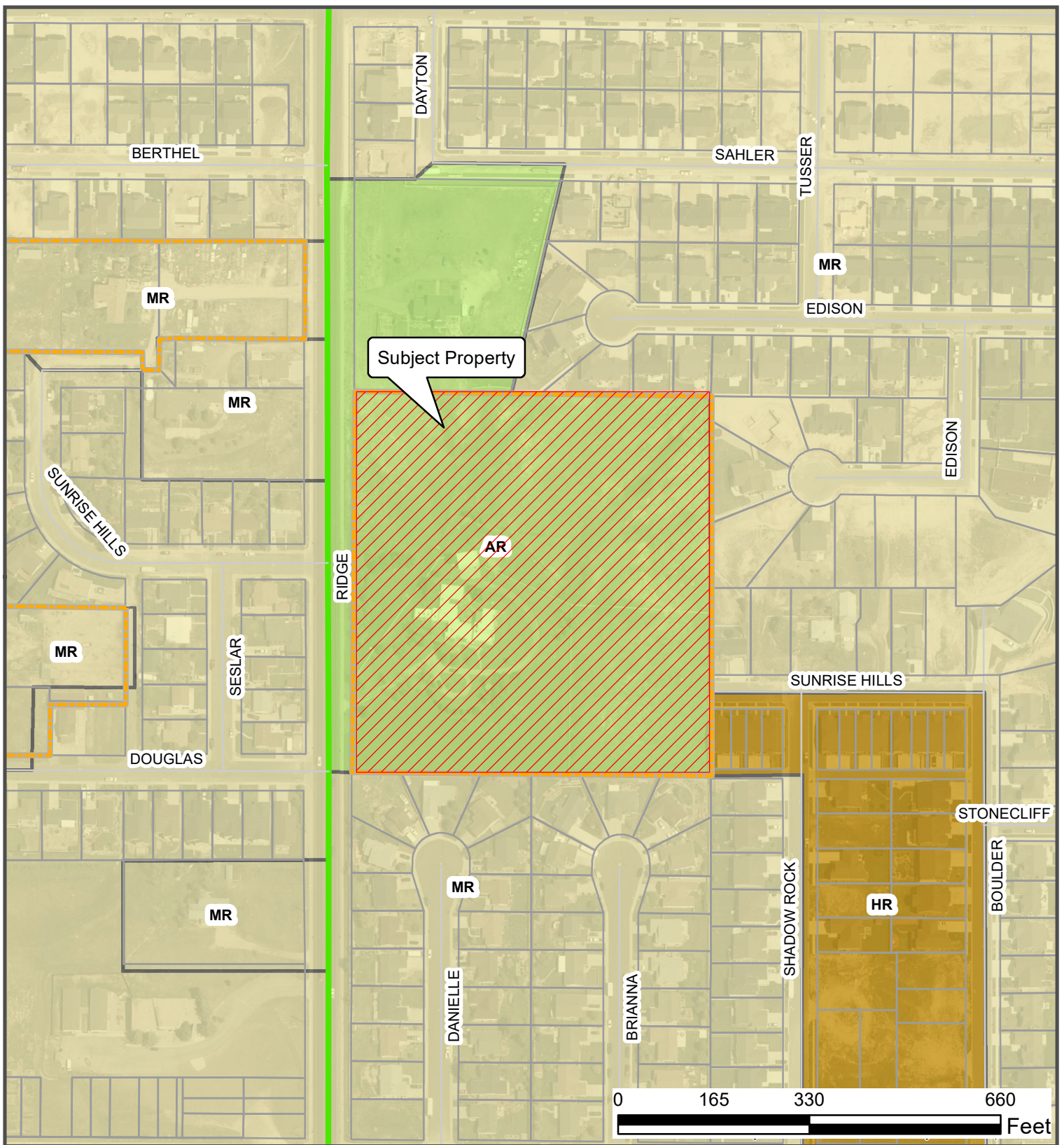
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Annexation Petition
5. Applicant-submitted annexation map

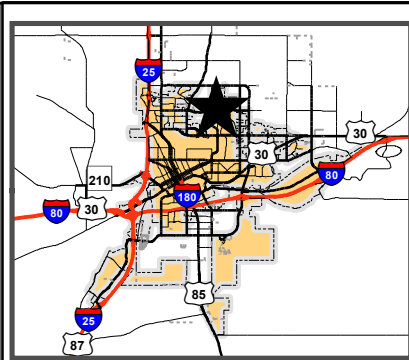
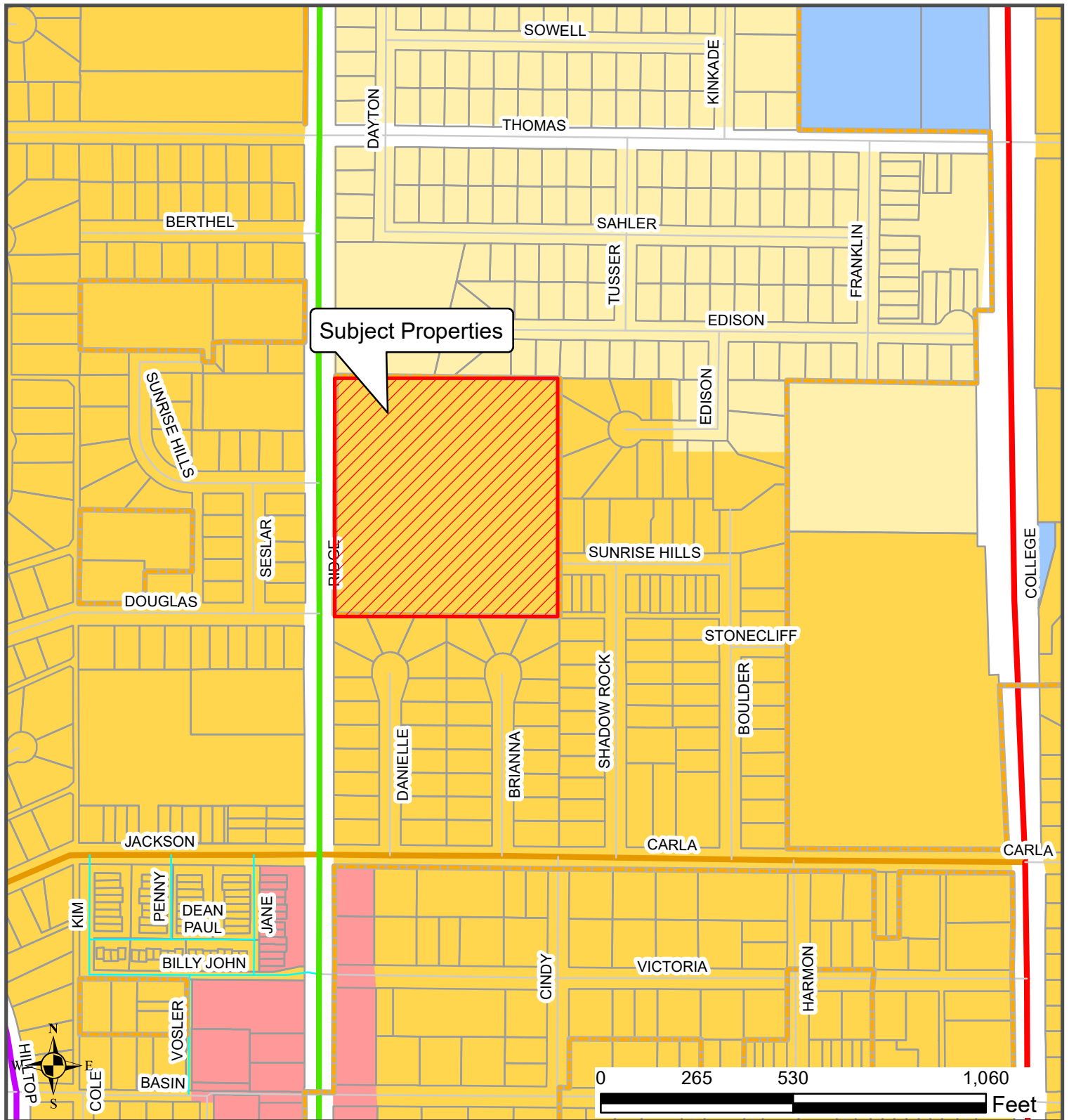


Attachment 1: Zoning Map PUDC-23-171

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-23-171

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Application Information

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

Project Name

HACIENDA PETERSON

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document [here](#).

The property owner is aware this application may not be withdrawn.

true

I understand final stamped and signed mylars are required prior to final Governing Body approval.

true

Annexation Type

Landowner Petition

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)

true

The area sought to be annexed is contiguous with or adjacent to the annexing city or town (15-1-402 a iv)

true

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)

true

The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)

true

Percent Contiguous

100

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)

true

Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses.

Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment. Check the box to acknowledge this requirement.

true

Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.

true



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT Brianne and Chase Peterson,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

TRACT 6, DELL RANGE ADDITION

The undersigned petitioners hereby respectfully request that said property and
adjacent streets be annexed to the City of Cheyenne, and be made a part
thereof.

By submitting the petition for annexation, the undersigned agree to abide with
all applicable provisions and City ordinances, rules, and regulations involving
annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

<i>Brianne Peterson</i>	<i>Brianne Peterson</i>	<i>10-30-23</i>
Signature	Printed Name	Date
<i>Chase Peterson</i>	<i>Chase Peterson</i>	<i>10-30-23</i>
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
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Signature	Printed Name	Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:

ANNEXATION DESCRIPTION

TRACT 6, DELL RANGE ADDITION.

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,,
this _____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk

ANNEXATION AREA

TOTAL AREA: 9.39 ACRES
9.39 ACRES PARCEL

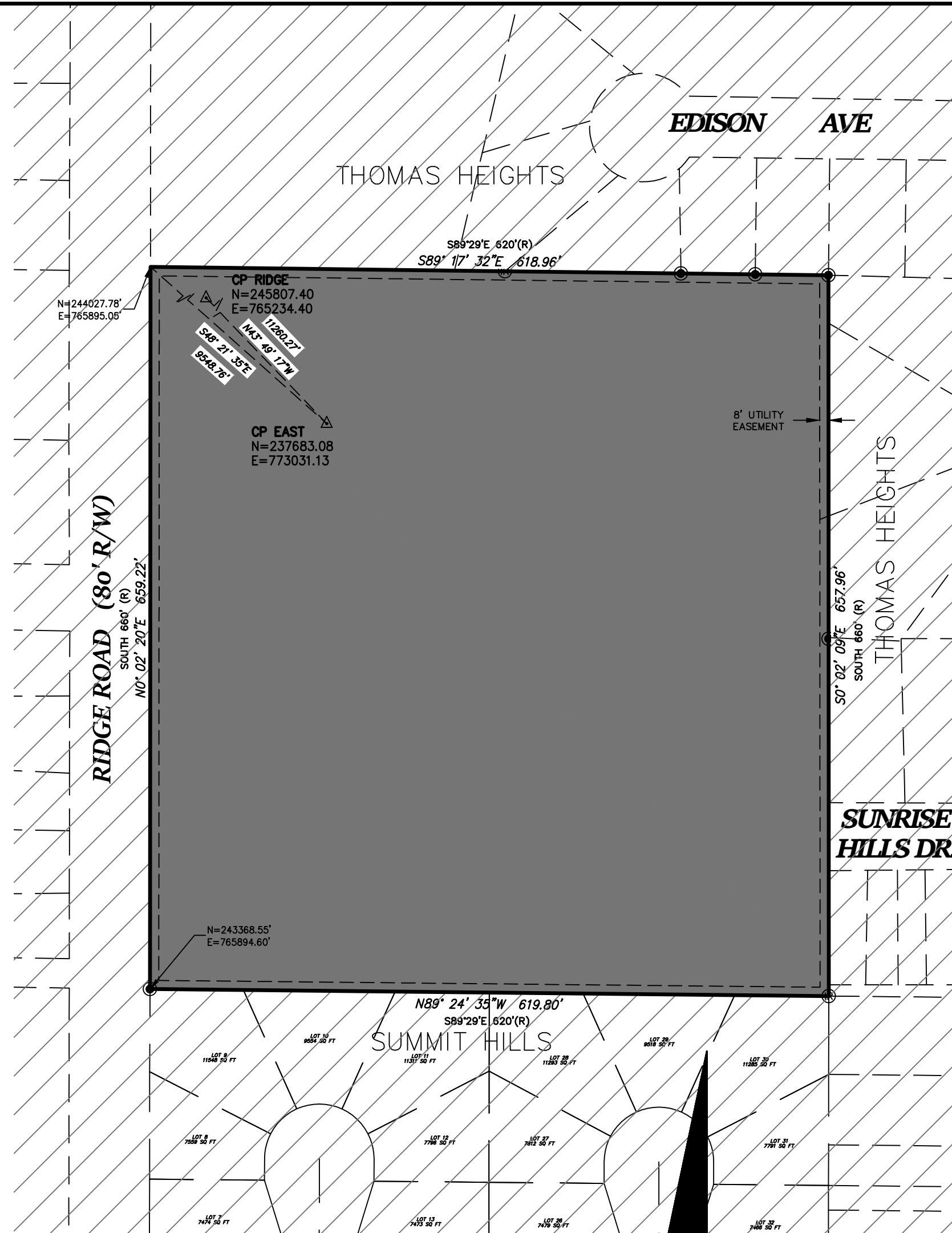
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US SURVEY FEET, DISTANCES ARE GRID
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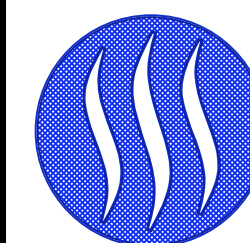
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- FOUND 1 1/2" ALUMINUM CAP
- (R) DENOTES RECORD DATA
- AREA TO BE ANNEXED
- ▨ CITY LIMITS



**ANNEXATION
EXHIBIT**

OF
TRACT 6, DELL RANGE ADDITION
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED OCTOBER 2023



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